

3. S-PR-0013723 In Re the Conservatorship of Diestler, Brian Michael

Appearance is required for continued hearing on petition for substituted judgment.

Missing notice of hearing. Missing service of notice of hearing to conservatee, all second-degree relatives of conservatee, and counsel for conservatee. Prob.C. §§ 2581 & 1214.

Missing needed allegations as to whether conservatee opposes the petition. Prob.C. § 2582(a).

Clarification is needed: the proposed trust has already been executed. The court has not granted any substituted judgment order authorization the creation of a trust. The court previously found the prior trust to be void.

Clarification is needed. the trust identifies settlors as Dennis Diestler and Deborah Dieslter, the parents of conservatee, and that the trust will be a 3d-party special needs trust. As requested in the petition, the substituted judgment special needs trust will be settled, only after court order, by *conservator* Brian Diestler only. The anticipated trust will be funded entirely with *conservatee's* assets, making it a 1st-party special needs trust.

Revisions are needed: the proposed special needs trust includes numerous provisions which violate the requirements of C.R.C. 7.903 or otherwise require revision, contrary to numerous verified statements in the petition, as follows:

- § 4.05 impermissibly grants discretion to trustee to terminate the trust in derogation of C.R.C. 7.903(c)(3);
- § 5.07(b) permits "any kind of property or type of investment" without regard to the limitations of Prob.C. § 2574 or the limited request for expanded investment powers requested in the petition at ¶ 18, in derogation of C.R.C. 7.903(c)(4); § 5.07(d) also appears to permit investments not allowed under Prob.C. § 2574;
- § 5.05 impermissibly waives bond in derogation of C.R.C. 7.903(c)(5);
- § 5.14 insufficiently specifies the "persons" to whom a trust account is required, and the manner in which it is to be rendered; further, the account frequency required by Prob.C. § 2620 et seq. is not annual, as indicated; see C.R.C. 7.903(c)(6); revision is needed;
- § 5.06 impermissibly allows trustee fees without court approval, and does not require court approval of attorney fees, in derogation of C.R.C. 7.903(c)(8).

Conservator response is needed: conservator should be prepared to show good cause for the power requested in proposed trust § 5.07(m) to hold estate property in trustee's individual name or in the name of nominees without disclosing the existence of the trust.

Other matter

On the court's own motion, conservator shall appear and shall request an increase in bond. Conservator's inventory and appraisal clearly shows that bond is inadequate, and conservator was immediately required to request a bond increase. C.R.C. 7.204(a). Based on the inventory and appraisal values and assuming no income, bond of at least \$993,186.23 is required under C.R.C. 7.207 and should be ordered. With income added, the needed bond amount will increase. To the extent a substituted judgment trust is created and funded with all conservatorship property, the same bond calculation will apply to trustee. See C.R.C. 7.903(c)(5).

4. S-PR-0013911 In Re the Conservatorship of Northern, Barry Wayne

No appearance is required for post-appointment conservatorship review hearing.
All needed post-appointment filings appear to have been filed and served as required. Court investigator will complete an annual review in 2027 according to standard court practices.

5. S-PR-0013965 In Re the Conservatorship of Brekken, Laila Grace

Appearance is required for post-appointment conservatorship review hearing.
Missing filing and service of Notice of Conservatee's Rights (GC-341).
Missing filing and service of Confidential Conservatee Care Plan—Part 1 (GC-355) and, if applicable, Part 2 (GC-356).

6. S-PR-0013999 In Re the Conservatorship of Kaldani, Janet S

No appearance is required for post-appointment conservatorship review hearing.
All needed post-appointment filings appear to have been filed and served as required. Court investigator will complete an annual review in 2027 according to standard court practices.

7. S-PR-0014037 In Re the Conservatorship of Burt, Kyle Scott

No appearance is required for post-appointment conservatorship review hearing.
All needed post-appointment filings appear to have been filed and served as